

Multiple Choice (10 marks)

1. In order to have an irrevocable offer under the Uniform Commercial Code, the offer must
 - (a) Be made by a merchant to a merchant.
 - (b) Be contained in a signed writing which gives assurance that the offer will be held open.
 - (c) State the period of time for which it is irrevocable.
 - (d) Not be contained in a form supplied by the offeror.
2. To prove a discriminatory classification, it must be shown that the government had intent to discriminate. Such intent can be shown by all but which of the following?
 - (a) A law that is discriminatory on its face.
 - (b) A discriminatory application of a facially neutral law.
 - (c) A discriminatory effect.
 - (d) A discriminatory motive.
3. Which of the following will not terminate a contract by operation of law?
 - (a) Death or insanity of a party.
 - (b) Partial performance
 - (c) Destruction of the subject matter of contract.
 - (d) Supervening illegality
4. If a regulation does amount to a taking, then what must the government do?
 - (a) Pay just compensation for the property
 - (b) Terminate the regulation and pay damages that occurred while regulation was in effect
 - (c) Pay double damages if not addressed in 30 days.
 - (d) a or b
5. The most likely contract to be classified under the Uniform Commercial Code (UCC) is a contract for
 - (a) A common carrier delivering a new computer.
 - (b) Crops and timber to be severed from the property next summer.
 - (c) The purchase of a commercial property building.
 - (d) The sale of an intangible asset.

True / False (10 marks)

Answer True or False

6. True or False: A bill of attainder is a legislative act that inflicts punishment on an individual without a trial.
7. True or False: State law is superior to federal statutes in the hierarchy of U.S. law, according to the Constitution.
8. True or False: The testimony of a man on death row is hearsay but is admissible as a dying declaration in the murder trial.
9. True or False: Termination of a parent's custody rights and welfare benefits can occur with only prior notice and an opportunity to respond.
10. True or False: Solicitation requires at least one party to agree to commit a crime along with the solicitation itself.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the implications of a defendant's disability, such as deafness, on the standard of care expected in negligence cases within the framework of constitutional law.
12. Discuss the types of facts that are appropriate for judicial notice in a trial and analyze why facts asserted by individual political organizations are typically excluded from this category.

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